

Regional Health Authority
Central Manitoba Inc.



Office régional de la santé
du Centre du Manitoba inc.

CONTRACT FOR SERVICES OF AN INDEPENDENT CONTRACTOR

THIS AGREEMENT made in duplicate this 2nd day of September, 2011.

BETWEEN:

Regional Health Authority – Central Manitoba Inc.
(hereinafter the “RHA”)

-and-

(hereinafter the “Physician”)

WHEREAS it is the responsibility of the RHA to provide for the delivery of medical services in the Regional Health Authority Central Manitoba Inc. Region in accordance with *The Regional Health Authorities Act of Manitoba* and its regulations;

AND WHEREAS the RHA requires the professional medical services of a general/family practitioner in the Region at the Dr. C.W. Wiebe Medical Centre, (the “Health Centre”) and wishes to enter into a contract for services with a general/family practitioner for the provision of these services at the Health Centre;

AND WHEREAS the Physician warrants that he/she has the necessary knowledge, skills, experience and requisite licensure to provide the medical services required by the RHA and agrees to provide said medical services and other services described herein, as an independent contractor, to the RHA;

NOW THEREFORE THIS AGREEMENT WITNESSETH that in consideration of the mutual covenants herein contained, the parties agree as follows:

1. The Preamble is incorporated into this Contract for Services of an Independent Contractor Agreement (“Contract”) and shall be used in its interpretation.

2. The parties hereto are bound by the Master Agreement dated September 2, 2011 between the Province of Manitoba ("Manitoba") and Doctors Manitoba. In the event of a conflict between this Contract and the Master Agreement, the latter shall prevail.
3. The Physician agrees to provide medical services, as outlined in paragraph 4 of this Contract, and other services described herein, to the RHA from April 1, 2011 to March 31, 2015 (the "termination date"), unless this Contract is earlier terminated in accordance with its provisions. The Physician shall render all services conscientiously and shall devote his/her best efforts and abilities thereto, all in accordance with the terms and conditions of this Contract.
4. For the purposes of this Contract, "medical services" excludes emergency room/out-patient department on-call coverage for which the Physician is entitled to receive additional compensation in accordance with the applicable agreement in effect from time to time between Manitoba and Doctors Manitoba, and includes clinical services and approved administrative services including, but not limited to:
 - a) the delivery of an average of eight (8) hours per day (40 hours per week) of medical services generally during normal office hours (or a pro-rated number of hours per day/week if the Physician provides less than 220 8-hour days of medical services (1,760 hours) per annum);
 - b) the specific medical services and on-call coverage, as applicable to be provided by the Physician shall be determined by the RHA in consultation with the Physician;
 - c) a reasonable number of patients encounters as determined between the Physician and the RHA;
 - d) availability for 24-hour at site/on site acute hospital inpatient services for the Physician's own patients;
 - e) availability for 24-hour medical advisory services – Personal Care Home, for the Physician's own patients. This shall include a resident medical assessment and a periodic review of the residents with the nursing staff at the personal care home as per facility policy;
 - f) acceptance by the Physician of new patients as required, to be determined by the RHA in consultation with the Physician;
 - g) attendance at patient care conferences and medical staff meetings;

- h) provision of seminars and teaching sessions to nursing staff on current medical topics, if requested, and upon reasonable notice from the RHA;
- i) provision of teaching sessions to medical students and family practice residents if the practice is accepted as a teaching practice and should sufficient space be available;
- j) provision of special clinics as determined to be required by the medical staff;
- k) house calls to the Physician's own patients in the community on an acute basis, and also on a more regular basis for those known to be at risk, all at the Physician's discretion;
- l) continuation of existing and, where appropriate and reasonable, expansion of dialysis treatment and service to patients in the community if required by the RHA;
- m) minor surgery;
- n) participation in provincial and RHA primary care renewal initiatives including but not limited to the Advanced Access initiative, the CareLiNK initiative, and the Bridging Generalist and Specialist Care application; and
- o) collaborative participation with other health care team members to facilitate the implementation of inter-professional and/or team-based patient-centered care models.
- (p) in recognition of the professional nature of the services to be provided within a primary care practice setting, the general practice Physician shall:
 - (i) incorporate patient-centered clinical perspectives into research and teaching activities, where applicable;
 - (ii) co-operate with patient access improvement activities;
 - (iii) incorporate evidence-based research findings into the delivery of clinical services and teaching in consultation with the Program Medical Director;
 - (iv) keep accurate and up-to-date medical records in a manner satisfactory to the CPSM and the Clinic;
 - (v) submit such reports and statistical information as may reasonably be required by the Clinic;

- (vi) co-operate with reasonable efforts to enhance efficiency and effectiveness of the services of the Clinic;
 - (vii) collaborate with other health care providers in the delivery of clinical services and where applicable teaching and research services;
 - (viii) support professionalism in the delivery of clinical services and where applicable teaching and research services, including enhancement of a patient-centered approach to all services delivery;
 - (ix) co-operate with efforts to ensure consistent standards of practice across the province and across the continuum of care;
 - (x) co-operate with the Clinic in efforts to recruit and retain clinicians and staff;
 - (xi) co-operate with strategies for cost-effective delivery of care;
 - (xii) co-operate with quality improvement and innovation efforts; and
 - (xiii) actively participate in staff evaluations.
5. All newly-recruited general practitioner Physicians shall be placed on Manitoba Health's Family Doctors Connection Program list for a period of 30 days within 4 months of execution of their employment contract with the Authority.
 6. In addition to the medical services outlined in paragraph 4 of this Contract, the Physician shall provide a reasonable and proportionate share of after hours on-call coverage at the Health Centre and Personal Care Home. All after hours emergency/outpatient or other on-call services shall be divided equitably between the Physicians working at the Health Centre.
 7. In order to accommodate Physicians' absences, including the absence of spouses who are both Physicians, Physicians shall co-operate with one another and with the RHA to ensure adequate provision of medical coverage.
 8. The Physician shall provide medical services at the Health Centre, and any of its existing satellite clinics which serve the catchment area of the Health Centre, and shall be responsible for all matters arising out of or resulting from his/her practice, except to the extent that this Contract makes such matters the responsibility of the RHA. In the event that the RHA intends to establish a new satellite clinic, the parties hereto shall negotiate the terms and conditions of the medical services to be provided by the Physician, if any.

9. As at the date of execution of this contract, it is agreed that the Physician shall be placed at, and paid in accordance with Class 3, Step 3 of the fee schedule attached hereto as Schedule "1".
10. It is understood that although the Physician is not, as an independent contractor, subject to the control or direction of the RHA except to the extent provided for in paragraph 21 of this Contract, the parties acknowledge that funding for the provision of medical services by the equivalent of one full-time Physician ("EFT") (as outlined in Schedule "1" of this Contract) is based on the provision of 220 8-hour days (1,760 hours) of medical services per annum. As of the date of the execution of this Contract, the RHA and the Physician agree that the Physician will provide **1760** hours of medical services per annum and will, for the provision of said medical services, be paid an hourly fee of **\$147.03**.
11. In the event that the Physician meets the requirements to be placed in a different Class during the term of this Contract (as described in Schedule "2" attached hereto), the Physician shall be paid at the corresponding Step in the new Class. If the Physician meets the requirements to be placed in a different Step during the term of this Contract (as described in Schedule "3" attached hereto), the Physician shall be paid at the next Step in the same Class.
12. The parties understand and agree that the Independent Contractor Fee No. I set out in Schedule "1" shall be the fee paid to the Physician because the Physician is responsible for **all** of the overhead expenses associated with the medical services he/she provides to the RHA. The parties further understand and agree that the RHA shall not directly or indirectly provide any funding or compensation of any kind (including "in kind" compensation) to the Physician for the medical services rendered pursuant to this Contract, other than specifically provided for in this Contract, or otherwise contribute to the Physician's overhead costs.
12. The parties agree that no additional remuneration or compensation (including but not limited to any benefit, payment in the nature of a signing bonus, retention bonus, employment incentive, retention incentive, relocation assistance, travel assistance and/or any "in kind" compensation) shall be paid for the medical services/specialist medical services in this Contract, other than as specifically provided for in this Contract.
13. In consideration for the provision of after hours on-call coverage pursuant to paragraph 6 of this Contract, the Physician shall be paid in accordance with the rates provided for in the applicable agreement(s) in effect from time to time between Manitoba and Doctors Manitoba, said applicable agreement(s) being the Basic A & B Agreement, the Tertiary and General Hospital ER Umbrella Agreement, the On-Call Specialist; Doc of the Day Agreement and/or the Personal Care Home On-Call Agreement.

14. Where the Physician is requested by the RHA to provide medical services outside of his/her normal office hours and the Physician so agrees, the Physician shall be paid additionally at the Physician's applicable hourly fee of remuneration.
15. Notwithstanding paragraph 14 or any other agreement to the contrary, if the Physician provides unscheduled obstetrical services to clinic patients or other patients outside of the Physician's normal office hours, the Physician shall be entitled to submit fee-for-service claims to Manitoba Health for such services, and the Physician alone (not the RHA) shall retain all fee-for-service earnings therefrom.
16. The Physician shall submit to the RHA a detailed invoice by the tenth day of each month for all medical services provided the previous month.
17. The Physician shall ensure the continuity of medical services to his/her own patients during his/her absence for any reason whatsoever and shall be responsible to obtain and pay for any necessary replacement coverage should he/she be unable to provide the medical services to be provided pursuant to this Contract. Provided that the Physician obtains and pays for said replacement coverage the Physician shall receive payment from the RHA for those medical services as if the Physician provided them himself/herself. In the event that the Physician fails to obtain and pay for said replacement coverage the Physician shall not receive payment for said hours. The Physician shall advise the RHA at least thirty (30) days in advance if he/she intends to be absent for more than five (5) days and shall provide the RHA with details of the arrangements he/she has made to ensure the continuity of medical services to his/her own patients and of any replacement coverage which he/she has obtained to provide the medical services to be provided pursuant to this Contract.
18. The Physician shall be responsible for any and all travel and accommodation costs associated with the provision of medical services pursuant to this Contract. The Physician shall, if the RHA has accommodations that it owns or operates, be eligible to use these accommodations at a reasonable cost determined by the parties.
19. The Physician agrees to:
 - adhere to all Medical Staff By-Laws, Rules and Regulations as may be approved by the RHA;
 - maintain a valid license with the College of Physicians and Surgeons of Manitoba ("College") and conduct a standard of practice consistent with the standards established by the College;
 - keep accurate and up-to-date medical records in a manner satisfactory to the College;

- submit fee-for-service claims to Manitoba Health, for statistical purposes only, for any and all insured medical services rendered pursuant to this Contract, notwithstanding that the Physician is not engaged in fee-for-service practice with respect to the medical services provided pursuant to this Contract (except to the extent provided for in paragraph 14 and 16 of this Contract);
 - not disclose any confidential information of the RHA, or the patients of which the Physician becomes informed, unless prior approval is received from the RHA or it is in compliance with *The Freedom of Information and Protection of Privacy Act* of Manitoba and *The Personal Health Information Act* of Manitoba;
 - maintain liability/malpractice coverage with the Canadian Medical Protective Association ("CMPA") or equivalent coverage with an insurance company and provide the RHA with evidence that he/she is a member of the CMPA in the appropriate risk category or has adequate insurance to deal with matters of general liability, including errors or omissions and malpractice, committed in the performance of the Physician's provision of medical services;
 - permit the RHA to review all medical/clinical records that have been produced or acquired by the Physician in connection with providing medical services pursuant to this Contract;
 - submit such reports and statistical information as may reasonably be required by the RHA;
 - make every effort to enhance the efficiency and effectiveness of the medical services of the Health Centre by working amicably and in co-operation with other Physicians providing medical services at the same location;
 - co-operate with the RHA in its effort to recruit and retain other Physicians and staff.
20. The parties intend and agree that the Physician is a professional acting as an independent contractor in the provision of medical services pursuant to this Contract. It is understood and agreed that as an independent contractor the Physician is not subject to the control or direction of the RHA as to the means and methods of performing said medical services unless he/she fails to comply with the professional standards applicable to the provision of such services. The Physician may provide services to other companies or organizations when he/she is not providing medical services to the RHA so long as the provision of these additional services does not place him/her in a conflict of interest. The RHA may not require the Physician to enter into a non-competition covenant with respect to the provision of medical services to the RHA.
21. As an independent contractor the Physician shall not, for any purpose, be deemed to be an employee of the RHA, nor be entitled to or receive from the RHA any rights or benefits of the RHA or its employees. The RHA shall carry no workers' compensation insurance or any health or accident insurance to cover the Physician. The RHA shall not make any contributions to the Canada

Pension Plan or any other pension plan, Employment Insurance, the Physician's annual CMPA (or any other liability insurance), Doctors Manitoba, College, continuing medical education or other professional expenses/fees or withhold any income taxes, nor provide any additional compensation for medical services delivered on statutory holidays, nor provide any other contributions or benefits, including but not being limited to paid vacation, statutory holidays, sick or continuing medical education leave.

22. As a professional who is an independent contractor and self-employed with respect to the practice of medicine, the Physician is not an employee of the RHA, and the Physician shall bear sole responsibility for the discharge of any professional liability, income tax liability, and any other liability imposed by law arising from the Physician's professional work and any other business expenses arising from such professional work.
23. The Physician shall, as an independent contractor, be responsible for collecting and remitting any applicable goods and services tax.
24. The Physician may, if he/she operates through a medical corporation, assign his/her duties under this Agreement provided he/she has the consent of the RHA.
25. The parties to this Agreement acknowledge and agree that neither Manitoba or Doctors Manitoba make any warranties whatsoever as to the status of the Physician for any purpose, including income tax purposes, and nothing in this Agreement constitutes a warranty of any kind as to the status of the Physician as an independent contractor.
26. This Contract may be terminated by the RHA at any time if:
 - a) the Physician is found guilty of professional misconduct by the College and the Physician's license to practice is suspended or revoked by the College;
 - b) the Physician makes false statements in any documents or records required of the Physician;
 - c) the RHA reasonably believes that the Physician's conduct may threaten the safety of patients or staff; or
 - d) the Physician is convicted of an indictable offence.
27. Either party may terminate this Contract at any time and for any or no reason whatsoever by giving the other party ninety (90) days written notice thereof.
28. The parties agree that, at least ninety (90) days prior to the termination date, each party shall provide the other with written notice as to whether they wish the Contract to expire or whether they wish to negotiate a new contract. The provisions of this Contract shall continue in full force and effect until such

provisions are changed by mutual written agreement of the parties or this Contract is terminated.

29. Any notice required to be given hereunder shall be in writing and sent by mail or delivered as follows:

To the RHA:
RHA Central
Medical Administration Office
Box 190
Notre Dame de Lourdes, MB R0G 1M0

To the Physician:

Dr. C.W. Wiebe Medical Centre
385 Main Street
Winkler, MB R6W 1J2

30. The parties agree to use their best efforts to resolve any disputes arising between them relating to this Contract as efficiently and cost-effectively as possible. In the first instance, this requires the parties to make bona fide efforts to resolve all disputes by negotiation. Where agreement cannot be reached by negotiation, the dispute shall be referred first to mediation or some other form of alternate dispute resolution as may be agreed between the parties. The parties agree to pursue resolution of the dispute via such alternate form by acting reasonably, in good faith and with a sincere desire to achieve a mutual resolution, and that resort shall be had to the courts or arbitration only after such other efforts have failed.
31. For the purpose of this Contract, the masculine and singular shall be construed to include the feminine and the plural, where appropriate.
32. If a court declares any provision of this Contract invalid, illegal or unenforceable, this Contract shall continue in full force and effect with respect to all other provisions. All rights and remedies under such other provisions shall survive any such declaration.

IN WITNESS WHEREOF the parties have executed this Contract this

_____ day of _____, 20 ____.

RHA Central Manitoba Inc.

Per: _____
Chief Executive Officer

SIGNED in the presence of:

Witness

SCHEDULE "1"

**IC # 1 Rural
and Brandon**

**Effective
Through** **1-Apr-11
31-Mar-15**

Class	Step	1-Apr-11		1-Apr-12		1-Apr-13		1-Apr-14	
		Hourly	Annually	Hourly	Annually	Hourly	Annually	Hourly	Annually
Class 1	1	\$123.83	\$217,941	\$123.83	\$217,941	\$131.76	\$231,898	\$136.96	\$241,050
	2	\$129.63	\$228,149	\$129.63	\$228,149	\$137.93	\$242,757	\$143.37	\$252,331
	3	\$135.43	\$238,357	\$135.43	\$238,357	\$144.10	\$253,616	\$149.79	\$263,630
Class 2	1	\$129.63	\$228,149	\$129.63	\$228,149	\$137.93	\$242,757	\$143.37	\$252,331
	2	\$135.43	\$238,357	\$135.43	\$238,357	\$144.10	\$253,616	\$149.79	\$263,630
	3	\$141.23	\$248,565	\$141.23	\$248,565	\$150.27	\$264,475	\$156.20	\$274,912
Class 3	1	\$135.43	\$238,357	\$135.43	\$238,357	\$144.10	\$253,616	\$149.79	\$263,630
	2	\$141.23	\$248,565	\$141.23	\$248,565	\$150.27	\$264,475	\$156.20	\$274,912
	3	\$147.03	\$258,773	\$147.03	\$258,773	\$156.44	\$275,334	\$162.62	\$286,211

IC # 1 Northern:

Class	Step	1-Apr-11		1-Apr-12		1-Apr-13		1-Apr-14	
		Hourly	Annually	Hourly	Annually	Hourly	Annually	Hourly	Annually
Class 1	1	\$146.74	\$258,262	\$146.74	\$258,262	\$156.13	\$274,789	\$162.29	\$285,630
	2	\$153.82	\$270,723	\$153.82	\$270,723	\$163.66	\$288,042	\$170.12	\$299,411
	3	\$160.90	\$283,184	\$160.90	\$283,184	\$171.20	\$301,312	\$177.96	\$313,210
Class 2	1	\$153.82	\$270,723	\$153.82	\$270,723	\$163.66	\$288,042	\$170.12	\$299,411
	2	\$160.90	\$283,184	\$160.90	\$283,184	\$171.20	\$301,312	\$177.96	\$313,210
	3	\$167.98	\$295,645	\$167.98	\$295,645	\$178.73	\$314,565	\$185.79	\$326,990
Class 3	1	\$160.90	\$283,184	\$160.90	\$283,184	\$171.20	\$301,312	\$177.96	\$313,210
	2	\$167.98	\$295,645	\$167.98	\$295,645	\$178.73	\$314,565	\$185.79	\$326,990
	3	\$175.06	\$308,106	\$175.06	\$308,106	\$186.26	\$327,818	\$193.62	\$340,771

All annual fees based on 1,760 hours of medical services per annum.

SCHEDULE "2"

CLASSES

Class 1

The Physician does not meet the requirements of Class 2 or Class 3.

Class 2

The Physician meets any one (1) of the following requirements:

- is qualified to provide and does provide obstetrical services;
- is qualified to provide and does provide anesthesia services;
- is qualified to provide and does provide sub-specialty services with certification at the level of anesthesia, obstetrics, or other sub-specialty, as approved by the RHA;
- has greater than 10 years of clinical experience as recognized by the RHA (excluding post-graduate training);
- has completed all LMCCs.

Class 3

The Physician has attained certification from the College of Family Physicians of Canada, or

The Physician meets any two (2) or more of the following requirements:

- is qualified to provide and does provide obstetrical services;
- is qualified to provide and does provide anesthesia services;
- is qualified to provide and does provide sub-specialty services with certification at the level of anesthesia, obstetrics, or other sub-specialty, as approved by the RHA;
- has greater than 10 years of clinical experience as recognized by the RHA (excluding post-graduate training);
- has completed all LMCCs.

SCHEDULE "3"

STEPS

Step 1

A Physician who has provided less than 1,760 hours of medical services as an independent contractor or 1 year of full-time medical services as an employee (or a combination thereof) with the RHA shall be paid for the applicable Class at Step 1.

Step 2

A Physician being paid at Step 1, who has provided 1,760 hours of medical services as an independent contractor or 1 year of full-time medical services as an employee (or a combination thereof) with the RHA shall be paid for the applicable Class at Step 2.

Step 3

A Physician being paid at Step 2, who has provided an additional 1,760 hours of medical services as an independent contractor or an additional year of full-time medical services as an employee (or a combination thereof) with the RHA shall be paid for the applicable Class at Step 3.